

**THE QUIET ROOMS**

## **Illinois Lawmakers Are Calling for a Nationwide Ban on Isolated Timeouts of Students**

Four states currently ban the practice of secluding students at school. Illinois lawmakers want Education Secretary Betsy DeVos to make it 50. “This shouldn’t be controversial,” said U.S. Rep. Sean Casten.

by Jodi S. Cohen, ProPublica Illinois, and Jennifer Smith Richards, Chicago Tribune, Jan. 15, 2:05 p.m. CST

*This investigation is a collaboration between ProPublica Illinois and the Chicago Tribune.*

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***Update, Jan. 15, 2020: This story was updated to include additional comments and reflect that the Education Department has not yet made a statement on the letter.***

Saying tens of millions of children are at risk, two U.S. senators and 10 members of the House of Representatives, all but one of them from Illinois, on Wednesday urged the nation’s top education official to tell schools to stop putting students in seclusion rooms.

They also asked Secretary of Education Betsy DeVos to issue federal guidance to prohibit physical restraints that restrict breathing and instead promote “evidence-based alternatives” for dealing with challenging behavior that don’t involve hands-on contact.

“We are gravely concerned by harmful student seclusion and restraint practices occurring in schools around our country,” reads the letter, spearheaded by [U.S. Rep. Sean Casten](#), a Democrat who represents the 6th Congressional District in Chicago’s west and northwest suburbs. “The use of seclusion and dangerous restraints is putting the psychological well-being and lives of children at risk every day and must be addressed at the federal level immediately.”

The letter cites a Chicago Tribune-ProPublica Illinois investigation, “[The Quiet Rooms](#),” that found public schools put children in seclusion, known in Illinois as isolated timeout, every day for reasons that violated the law. Reporters also found that school employees were physically restraining children — sometimes facedown on the floor — when there was not an

emergency safety risk, also a violation of state law. Most of the children who were secluded had intellectual or behavioral disabilities.

The day after the first story published in November, the Illinois State Board of Education banned locking students in isolation rooms, restricted the use of restraints and required public and private schools to alert the state when they use the interventions. Proposed rules that would take effect this spring would ban face-down restraints. State lawmakers have also introduced legislation to ban seclusion.

Four states — Georgia, Hawaii, Nevada and Pennsylvania — ban seclusion. Sixteen others, now including Illinois, ban seclusion in certain circumstances or for certain types of students. “There are tens of millions of American children still at risk of experiencing this detrimental practice,” according to the letter sent Wednesday.

The Education Department had not commented about the letter by late Wednesday.

Casten said the misuse of the rooms is widespread throughout the country, and action is necessary to update 2016 federal guidelines on the issue. In the 2015-16 school year, the most recent year data was collected nationally, schools reported having used seclusion more than 73,000 times.

Casten acknowledged that school employees need training in alternatives to seclusion and restraint, but said in an interview Wednesday, “I have not heard from anyone that they would be very disappointed if we took away this frankly inhumane practice.

“This shouldn’t be controversial,” he added. “I have no doubt that with the Department of Education leading this and the Congress behind it, we can put an end to this practice.”

Seclusion rooms are typically small, sometimes padded, spaces meant to be used only in a safety emergency. Some have heavy doors that lock and most are bare inside. Once reserved for residential or psychiatric facilities, some public schools began using them decades ago as they began serving more students with disabilities. While families and disabilities advocates say they are inhumane and cause lasting trauma, some school officials say they need the option to educate students with significant behavioral challenges.

Congressional efforts to prohibit seclusion and limit physical restraint in public schools that receive federal funds have repeatedly stalled since 2009. But after “The Quiet Rooms” was published, U.S. Rep. Don Beyer, D-Virginia, said he plans to reintroduce the most recent bill to ban seclusion, the Keeping All Students Safe Act.

Casten said the ProPublica Illinois-Tribune investigation mobilized members of the Illinois delegation. He said they didn't actively seek support from lawmakers from other states, but U.S. Rep. Ayanna Pressley, a Massachusetts Democrat, signed the letter.

U.S. Sen. Tammy Duckworth said she signed the letter to DeVos with the hope that she would “immediately ban this disturbing practice.”

“As a mother to two young girls, it makes me physically ill to hear stories about children being locked up in isolation rooms as part of their school’s seclusion program,” Duckworth, a Democrat, wrote in a statement. “This is a horrifying practice that is dangerous and detrimental to the well-being of all young students, especially those with disabilities.”

U.S. Sen Dick Durbin wrote: “The practices of life-threatening student seclusion and restraint should be banned from our schools. We are calling on the Department of Education to respond.”

The Tribune-ProPublica Illinois investigation, based on records from more than 100 school districts, documented more than 35,000 times when students were put in seclusion or restrained. While state law allows seclusion and restraint only when there’s a safety issue, workers put children in isolation as punishment for spilling milk, not doing work or refusing to put toys away, the analysis found.

In one-third of the seclusion incidents, the law was violated, the investigation found; for restraint, the violation rate was one out of four.

Advocates for people with disabilities for years have called for a ban on seclusion and dangerous types of restraints. “We believe that the Department of Education needs to be more vocal against these harmful and unnecessary practices,” said Annie Acosta of The Arc, a national group that works on behalf of people with intellectual and developmental disabilities. “We hear from parents from across the country about the lasting effects on their children, such as anxiety, depression, trouble sleeping and a fear of school. This does not need to happen.”

The U.S. Education Department last issued guidance about seclusion and restraint in December 2016, focusing on concerns that the interventions could result in discrimination against students with disabilities. The federal government defines seclusion as involuntarily confining students alone in a room or area they can’t leave. That wouldn’t include times when a student chooses to take a break from class to calm down or go to a sensory room.

In January 2019, DeVos said the department would “address the inappropriate use of restraint and seclusion” by conducting compliance reviews of school districts and working to improve data reporting. Schools’ self-reported data on the use of seclusion and restraint is flawed, the

ProPublica Illinois-Tribune investigation found; an education spokesman said Wednesday that the department has worked with hundreds of school districts this year to ensure accurate reporting and has received corrected data, including from Illinois.

The department has not opened any compliance reviews involving restraint and seclusion at Illinois school districts in the past year, the spokesman said. The department's Office for Civil Rights has been investigating a seclusion and restraint-related complaint at Valley View School District 365 in Bolingbrook since May 2016.

Casten said he hopes there will be federal guidance soon to end seclusion and limit restraints, followed by a law to "cement that in place."

Miranda Johnson, a professor at Loyola University's law school who studies school discipline reform, said research shows that practices that prevent students' behavior from escalating are effective and keep students safe.

"What I haven't seen in research is any evidence that seclusion and restraint do help to keep young people and adults safe at school. In fact, they come with great risks, including the risk of death," she said.

"We need to go back and reflect on our assumptions on practices that are keeping students safe in schools."

The other members of the Illinois delegation who signed the letter are U.S. Reps. Cheri Bustos, Mike Quigley, Danny Davis, Brad Schneider, Jan Schakowsky, Jesus "Chuy" Garcia, Raja Krishnamoorthi and Bill Foster. All are Democrats.

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**Read the Full Letter**View [on DocumentCloud](#).**Congress of the United States**  
Washington, DC 20515

January 15, 2020

in schools around our country. We respectfully urge you to update your federal guidance<sup>i</sup> banning seclusion, banning restraints that restrict breathing and are life-threatening, and promoting evidence-based, positive behavior strategies and de-escalation techniques to reduce the use of physical restraint.

According to a November 2019 report by the *Chicago Tribune* and ProPublica IL<sup>ii</sup>, children as young as five, disproportionately children with disabilities, are being locked alone in empty rooms for behavioral concerns or to “calm down” after misbehavior. In reality, the rooms have the opposite effect: children throw themselves at the door and scratch at the windows trying to escape. Some are recorded as urinating on themselves, undressing, attempting to commit suicide, or crying out that they want to die. Tragically, in some states, children have died in seclusion rooms.<sup>iii</sup>

In Illinois alone, 20,000 such seclusions were reported from August 2017 to December 2018, hundreds of which involved children in first grade or younger, according to the November *Tribune* article. Not only does this practice cause students to miss valuable classroom time—some are secluded for hours on end—it can also cause serious physical and psychological trauma. A December *Tribune* and ProPublica IL follow-up article<sup>iv</sup> found that restraints—including restraints that can restrict breathing—were being used even when students and staff were not in physical danger, in violation of Illinois law.

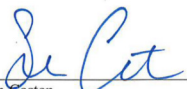
We were relieved that, following the publication of the November report, the Illinois State Board of Education (ISBE) responded swiftly to ban seclusion in schools across the state. However, that makes Illinois only the fifth state to ban seclusion. There are tens of millions of American children still at risk of experiencing this detrimental practice.

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The use of seclusion and dangerous restraints is putting the psychological well-being and lives of children at risk every day and must be addressed at the federal level immediately. We respectfully urge you to update the Department of Education's 2016 guidance to ban seclusion, ban restraints that restrict breathing and are life-threatening, and promote evidence-based alternatives to reduce the use of physical restraint.

We appreciate your prompt attention to this matter.

Sincerely,



Sean Casten  
Member of Congress



Richard J. Durbin  
United States Senator



Tammy Duckworth  
United States Senator



Cheri Bustos  
Member of Congress



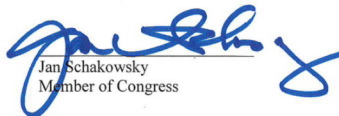
Mike Quigley  
Member of Congress



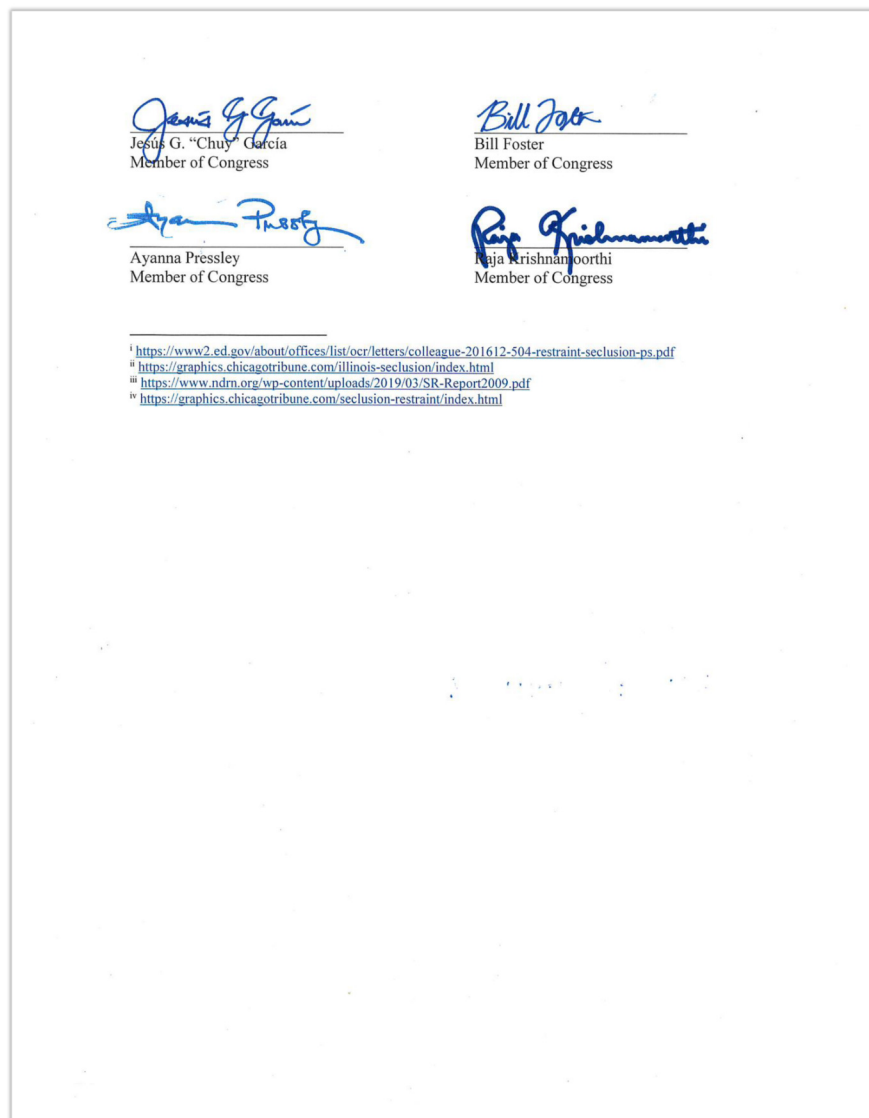
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**Filed under:** [Education](#)



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